



Policy

Mental Health Consumers who Decline Assessment

Policy code	EMHS: 15
Original endorsement date	July 2018
Date of current endorsement	September 2022
Version	1.00
Functional sub group	Mental health
Summary	To provide guidance for Mental Health Clinicians within EMHS where a patient declines assessment
Policy owner	Executive Director Safety Quality and Consumer Engagement
Contact	
Review date	September 2025
NSQHS Standard (second edition)	Standard 1
NSMHS Standards	1.3, 1.12, 6.7, 6.8, 9.3, 9.4, 10.6.8
Status	Active

1. Background

1.1 About this document

This policy provides guidance for mental health clinicians within the East Metropolitan Health Service where a patient declines assessment or follow-up by the site or service

1.2 Procedures

Persons may be referred to a mental health service by a number of sources, including medical practitioners, other health services, community support services, police, family / carers or by self-referral.

A referred patient might decline an initial mental health assessment or clinical follow-up.

In such circumstances the mental health service should evaluate the apparent risk of the patient not receiving appropriate care, in consultation with the referrer and any involved carers, and take appropriate action. Such action might include

- Seeking further information from the source of referral;
- Seeking collateral information from involved carers / other appropriate persons, e.g. police;
- Requesting a community assessment by an after-hours mental health service;
- Requesting a welfare check or other appropriate action by WA Police; and/or
- Considering referral for examination by a psychiatrist.

The mental health service should also notify the patient's GP (or other referrer) that it has been unable to contact the patient

Staff will use the flowchart included in Appendix A to guide clinical decision-making

Refer to EMHS Appendix [Mental Health Consumers who Decline Assessment Appendix A - Process Flowchart](#)

2. Consent

2.1. Valid Consent

Except in circumstances of Emergency Psychiatric Treatment, clinicians must seek valid consent from a voluntary patient before providing psychiatric treatment. Consent must be given freely and voluntarily.

A failure to offer resistance to treatment does not of itself constitute consent to treatment

Refer to OD 0657/16 [WA Health Consent to Treatment Policy](#)

3. Record Keeping

Clinicians who take actions to locate, assess and / or treat a patient who has declined assessment or follow-up must document those actions, as well as the risk assessment of the patient, in the patient's medical record

Refer to DOH 0657/16 [WA Health Consent to Treatment Policy](#) and

- National Mental Health Commission [Mentally Health Workplaces](#)
- [Mental Health Act 2014](#) with referral Form 1A for examination by a Psychiatrist
- MP 0127/20 [Discipline Policy](#)
- MP0125/19 [Notifiable and Reportable Conduct Policy](#)
- MP0099/18 [Community Mental Health Status Assessment: Role of MH Clinician](#)

4 Compliance monitoring and legislative penalties

1.4 Compliance monitoring

Each EMHS site or service executive director is to ensure compliance with this policy.

Breach of this policy may lead to disciplinary action as per the WA Health Misconduct and Discipline Policy.

A documentation audit will be undertaken at predetermined intervals under the direction of the Hospital Service Co-Directors.

Refer to MP0127/20 [Discipline Policy](#)

2.4 Legislative obligations

There are no legislative obligations relating to this policy for which a statutory penalty is imposed for a breach.

5 Legislation

- Mental Health Act 2014
- [Mental Health Act 2014](#) [CRAM](#) Clinical Risk Assessment Management -Standards2008
- Corruption and Crime Act 2003 [Notification of Misconduct in Western Australia](#)

6 Additional references

6.1 WA Health policies

- OD 0657/16 WA Health Consent to Treatment
- MP0127/20 - Discipline Policy with Explanatory Notes and Template Letters
- [MP0099/18 Community Mental Health Status Assessment: Role of MH Clinician](#)

6.2 EMHS policies

- EMHS [Documentation Clinical Practice Standard](#) (CPS)

6.3 Other

National Mental Health Commission [Mentally Health Workplaces](#)
Wungen Kartup Specialist Aboriginal Mental Health Service

Appendix A – Mental Health Consumers who Decline Assessments Process Flowchart

EMHS Consumers Declining to Participate in Assessment or Follow-up Appendix A